"Part of the Team" Options Sheet

> **PENDING LAWYER REVIEW.** The RadAssist royalty terms below reflect Option A, chosen by Rick 2026-11-03 (15% IP royalty to Luis on all licenses, no per-sale fees to anyone). Not final until a Texas-licensed healthcare attorney has reviewed them.

Why: per `private/SHERLOCK-ROYALTY-LAW-2026-11-03.md`, per-sale commissions paid to healthcare providers are moderate-to-high risk under Tex. Occ. Code 102.001 (patient solicitation) and the federal Anti-Kickback Statute; a fixed, fair-market-value royalty on all revenue for documented IP is the defensible shape.

PRIVATE. Rick only. Never share with Luis, Fernando, or Jesse. Prepared 2026-11-01; royalty terms revised 2026-11-03.

Context. On the 10-31 call Luis said, "I really think you need to be part of the team." The new center's financing is approved. RadAssist is RGF's software. Luis is its clinical expert and pilot user. The partner dinner is Wednesday 11-04 or Thursday 11-05. **The engagement, approved 2026-11-02: $45,000 fixed fee in five phases (Discovery $7,000; Vendor selection $8,000; Design and staffing plan $7,000; Build and configure $14,000; Testing, training and go-live $9,000), November 2026 to May 2027, each phase paid at its start after the previous sign-off ($4,000 + $3,000 for Phase 1; $7,000 + $7,000 for Phase 4), $150/hr outside the phases against a topped-up retainer.**

Principles (hold these no matter which option)

1. **Cash first, equity is a kicker.** Your finances are tight. Equity in a center that opens around June 2027 pays nothing for years and can be diluted. Monthly cash pays rent now.
2. **RadAssist stays owned by RGF and is licensed to the center.** Never contribute it, assign it, or let it become a center asset. Luis's clinical input is covered by a separate advisor agreement (see Doc 2).
3. **The engagement stays separate from any role.** The $45,000 five-phase engagement (fixed fee, paid per phase at the start, each phase gated on the previous sign-off) is a contract between the center and RGF. A role does not absorb it, discount it, or replace it. The $150/hr retainer for out-of-scope work is also separate from any retainer for a role; keep the two ledgers apart.
4. **Everything runs through RGF Global Ventures LLC, never you personally.**

The options

	What it is	Pros	Cons	Risk
A. Paid consultant only	Engagement fees plus the RadAssist license. No ongoing role.	Clean. Simple to contract. No conflict with other work or a full-time job.	Leaves Luis's offer on the table. No steady monthly income. Easy to replace after the build.	Low legal risk. Medium income risk: lumpy cash, ends when the build ends.
B. Fractional technology lead on a monthly retainer, plus the engagement	RGF provides a set number of hours a month as the center's technology lead (vendors, systems, security, RadAssist). Engagement billed separately.	Steady cash. Answers "part of the team" with a real title. Keeps you in the room on every tech decision. Easy to scale down.	Retainer scope creep. Needs a clear hours cap. Must fit around an Oracle or GDIT role if one lands.	Low to medium. Manageable with a written hours cap, a 30-day exit, and fixed scope.
C. Retainer plus small equity or a performance bonus	Option B, plus either a small equity stake in the operating company or a bonus tied to measurable results (go-live on time, prior-auth turnaround).	Cash now plus upside. Signals commitment to Fernando. A performance bonus pays sooner than equity and avoids cap table issues.	Equity paperwork, possible tax on grant, minority holder with little control. Bonus metrics can be argued.	Medium. Equity can be diluted or worthless. Prefer a bonus or a profits interest with vesting, reviewed by a lawyer.
D. Equity-heavy, low cash	Mostly equity, little or no retainer.	Biggest upside if the center does well.	No cash for 1 to 2+ years. You carry risk with no control. Fernando is tight with money and may see this as a cheap way to get your work.	**High. NOT RECOMMENDED right now.** Your finances cannot carry it.

Placeholders for you to set (not market data)

- Monthly retainer: **$[RICK TO SET]** for up to **[X] hours** a month. Overage at **$[RICK TO SET]/hr**.
- Equity, if any: **[X]%** of the operating company, vesting over **[X] years**, or a profits interest.
- Performance bonus: **$[RICK TO SET]** on **[metric]**.

I have not put market salary numbers here on purpose. Set these from your own anchor, not a guess.

Recommended ask

Option B now, with Option C as the follow-up.

- RGF becomes the center's fractional technology lead on a monthly retainer with an hours cap, starting when the design engagement starts.
- The five-phase engagement is billed as priced ($45,000), on its own schedule.

- RadAssist is licensed to the center, never contributed. Luis's design and IP contributions are compensated under the advisor agreement (Doc 2): **a 15% royalty on net revenue from all RadAssist licenses, regardless of who sells, recurring, for a proposed 5-year term (attorney to confirm), fixed in advance at fair market value (Option A, 2026-11-03, pending lawyer review).** His own center uses it free under a reference-site agreement. No royalty on consulting fees or on this engagement.
- Equity or a performance bonus is discussed after opening, once there are real numbers. If they offer equity now, take it only on top of the retainer, never instead of it.

Walk-away lines

- **Walk away** if the role replaces the engagement fees or the retainer instead of adding to them.
- **Walk away** if they ask for ownership of RadAssist or its code, or a share of it as a condition.
- **Walk away** from equity in place of cash. "I can't do equity instead of cash right now."
- **Walk away** if there is no hours cap or no exit clause.
- **Walk away** from signing anything personally. RGF only.

How to say it at dinner (in your voice)

> "Luis, I appreciate that, and I want to be part of this. Here's how I'd like to do it so it's clean for everybody. The engagement stays what it is, forty-five thousand, fixed fee, fixed scope, five phases you sign off one at a time. On top of that, I'd come in as your technology lead on a monthly retainer. You get me on every vendor call and every system decision, with a set number of hours so nobody gets surprised. RadAssist stays my company's product and the center licenses it, same as any other center would. Once we're open and we see the numbers, I'm happy to talk about tying part of it to how the center does. I'd rather earn that than ask for it up front."

If pushed on equity now: "*I'm open to it later. Right now I need it to be a paid role, and I'd rather be straight with you about that.*"

Update 2026-11-03, afternoon (Option A, pending lawyer review; replaces the morning note of 30% on centers Luis sells and 10% referral fees): Luis 15% of net license revenue on all RadAssist licenses, whoever sells, recurring, for his design and IP contribution; proposed 5-year term, attorney to confirm; fixed in advance at fair market value. Free use at his center documented as a reference-site agreement. Any future major module co-design gets a separate written agreement. Fernando and Jesse: no per-sale referral fees and no royalty for now; they may earn in later only for real, documented design work under a written agreement approved by counsel. License list $2,400/yr, $1,800 founding floor. Kept out of the Thursday pitch. Attorney review (federal AKS, Tex. Occ. Code 102.001, FMV rate) before signing.